



**Murithi v Ravate & 4 others (Environment and Land Case
E163 of 2023) [2025] KEELC 6357 (KLR) (30 January 2025) (Ruling)**

Neutral citation: [2025] KEELC 6357 (KLR)

**REPUBLIC OF KENYA
IN THE ENVIRONMENT AND LAND COURT AT NAIROBI
ENVIRONMENT AND LAND CASE E163 OF 2023**

**J OMANGE, J
JANUARY 30, 2025**

BETWEEN

PAPIAS KARINGA MURITHI PLAINTIFF

AND

FAROUK RAVATE 1ST DEFENDANT

JUSTIN SAMOURGOMPOULLE 2ND DEFENDANT

ERICK AGBEKO 3RD DEFENDANT

PHILLIP NYAMBOK 4TH DEFENDANT

EQUITY BANK 5TH DEFENDANT

RULING

1. There are two applications coming up for hearing one dated 15th March 2024 in which the Plaintiff seeks joinder of the National Land Commission, Nairobi City County and Registrar of Titles as the 5th, 6th and 7th Defendants to this suit. The application is brought on the grounds that the intended Defendants have threatened or started an act of disobedience which will deny him quiet use and enjoyment of the suit property. That enjoinder of the parties will enable determination of the real issues in dispute.
2. This application is opposed by the 1st, 2nd and Interested Party who have filed an affidavit by Kevin Odhiambo in which he opposes the enjoinder of National Land Commission as he avers that there is no legitimate claim against the National Land Commission or the Nairobi City County. He however concedes that the Registrar of Titles shall confirm ownership of the suit property.
3. In the second application dated 15th May, 2024 the Plaintiff seeks that the court appoint a receiver manager to receive rent and so as to maintain law and order. The main ground for filing this application is that the court gave interim orders in ELC Civil Appeal Number E044 of 2024 which can only



be enforced by the receiver manager. This application is again opposed by the 1st, 2nd and interested party. The deponent deposes that by a partial Judgement delivered on 20th January, 2020 the issue of ownership was determined in HCCOM 450 of 2011. The instant application is an attempt by the Plaintiff to relitigate issues which have already been determined and others which are pending before other courts.

4. I will start with the 1st application in which the only issue for determination is whether the three parties sought to be enjoined are necessary parties or whether they will convolute this matter unnecessarily.
5. Joinder of parties is provided for in Order 1 Rule 10(2) of the [Civil Procedure Rules](#) as follows: -(2) The court may at any stage of the proceedings, either upon or without the application of either party, and on such terms as may appear to the court to be just, order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all questions involved in the suit, be added.
6. Similarly, in the case of *Meme v. Republic*, [2004] 1 EA 124, the High Court observed that a party could be enjoined in a matter for the reasons that:
 - i. “Joinder of a person because his presence will result in the complete settlement of all the questions involved in the proceedings;
 - ii. joinder to provide protection for the rights of a party who would otherwise be adversely affected in law;
 - iii. Joinder to prevent a likely course of proliferated litigation.
7. Given that this application for joinder was brought by the Plaintiff he needed to demonstrate that the parties he seeks to enjoin will help the court achieve one if not all of the objectives set out in the Meme case supra which I wholly adopt. The Plaintiff has failed to do this as he only states without qualification that the proposed parties have denied him quiet use of his property.
8. I have however considered that the court can of its own motion enjoin a party. I have therefore considered the plaint that was filed herein for proper context. The plaint does not give any indication of any issues against the proposed defendants save for the Registrar of Titles who would no doubt be a necessary party on the question of the documentation. I therefore allow the application for the Registrar of Titles to be enjoined as a Defendant.
9. On the application dated 17th May, 2024, the issue is whether the court should appoint a receiver manager. Again, I have to state that the Plaintiff failed to provide necessary evidence in support of his application. In the affidavit in support of the application he states that a receiver manager should be appointed. While failing to attach the court order he refers the court to an order issued in ELC Appeal E044 of 2024. I also note that there is no affidavit sworn by any tenant in support of his application. In the end I find that given the gaps in the Plaintiffs application, no proper basis has been laid for appointment of a receiver manager or even for the cross examination of witnesses at an interlocutory stage.
10. The court makes the following orders;
 - a. The application dated 15th March 2024 is partially allowed. The Registrar Titles is to be enjoined as the 5th Defendant
 - b. The Plaintiff is to file and serve an amended plaint within 30 days



- c. The application dated 17th May, 2024 is dismissed with costs to abide the outcome of the main suit

JUDGMENT SIGNED, DATED AND DELIVERED VIA MICROSOFT TEAMS THIS 30TH DAY OF JANUARY 2025

JUDY OMANGE

JUDGE

In the presence of:

Mr. Kalwa for Plaintiff/Applicant

Mr. Barako for 1st and 2nd Defendant/Respondent

Mr. Nyambo for 3rd Defendant/Respondent

Ms. Karagi for 5th Defendant Respondent

Court Assistant Meryline

